Building control approval for higher-risk buildings

How to apply for building control approval from the Building Safety Regulator to construct, or carry out building work on, a higher-risk building.

From:

Building Safety Regulator and **Health and Safety Executive**

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Applies to England

Contents

The role of the Building Safety Regulator (BSR)
Who must apply for building control approval
When to get building control approval
Building work that does not need building control approval
Applying to construct a new higher-risk building
Applying to carry out building work on an existing higher-risk building
Emergency repairs to an existing higher-risk building
After applying
Application decisions
Expiry of building control approval
Managing building work after approval
Making changes to the project after approval
Completion certificates
Charges

Print this page

The role of the Building Safety Regulator (BSR)

BSR oversees and approves building work for higher-risk buildings. These are buildings that have at least:

- 7 storeys or are at least 18 metres high
- 2 residential units or are a hospital or a care home

A higher-risk building with at least 2 residential units must be registered with BSR before people live there.

When you submit a building control approval application, BSR uses it to check that the:

- proposed work will comply with building regulations
- the client will properly manage the project
- the client appoints people to work on the project who are competent to do their job

You can find out more about the duties of the client, designers and contractors in the guidance about design and building work: meeting building requirements.

Non-higher-risk buildings

Do not apply to BSR for building control approval for non-higher-risk buildings.

For non-higher-risk buildings:

- there is a separate process to apply for building regulations approval
- building control is managed by either local authorities or businesses registered as building control approvers

Projects with higher-risk and non-higher-risk buildings

If a project contains both types of buildings, in most cases:

- BSR will be the building control authority for the higher-risk buildings
- the local authority or a registered building control approver will be the building control authority for the non-higher-risk buildings

In limited circumstances BSR may agree to be the building control authority for both types of buildings in a project. You can request this by contacting BSR. Your request will be assessed and BSR will tell you their decision.

Who must apply for building control approval

The client must make sure:

- building control approval is granted before any building work starts
- the information provided in the building control approval application is correct

The client can nominate someone else to make the building control approval application and manage the building control process for them. However, the legal responsibility for the application remains with the client.

When to get building control approval

You must get building control approval from BSR before starting:

- construction of a new higher-risk building
- building work to an existing building that either makes it a higher-risk building, or stops it being a higher-risk building
- building work to an existing higher-risk building, unless it consists only of exempt work, competent person scheme work or emergency repairs

Carrying out building work without the required building control approval is a criminal offence.

You may also need to get planning permission before applying for building control approval. If you're not sure, check with the local authority.

Transitional buildings

If the building work started before BSR became the building control authority, transitional arrangements may apply.

You can find out more by reading the guidance about:

- transitional building control approval for new higher-risk buildings
- transitional building control approval for work on existing higher-risk buildings

Building work that does not need building control approval

You do not need to apply for building control approval for work which consists only of:

- exempt work
- competent person scheme work

However, if any of this type of work is part of a wider building project, then it must be included in the building control approval application for that project.

Exempt work

You do not need building control approval for work that includes:

- most repairs, replacements and maintenance work (except heating systems, oil tanks, fuse boxes and glazing units)
- new power and lighting points, or changes to existing circuits (except around baths and showers)
- replacements of baths, toilets, basins and sinks
- installing insulation in roof spaces or under timber floors

You do not need building control approval when replacing:

- some hot water storage systems less than 15 litres
- gutters or downpipes
- external doors, where less than 50 percent of the surface is glazed

If you’re not sure if the work is exempt, check with a competent contractor or other building control professional.

When exempt work forms part of a wider building project, then it must be included in the building control approval application for that project.

If the project includes only exempt and scheme work, it does not need building control approval.

Competent person scheme work

You do not need building control approval for work carried out under a competent person scheme.

When competent person scheme work forms part of a wider building project, then it must be included in the building control approval application for that project.

If the project includes only scheme and exempt work, it does not need building control approval.

You can check the types of building work covered by competent person schemes. Ask the scheme provider if they cover building work on higher-risk buildings.

Applying to construct a new higher-risk building

How to apply: new higher-risk buildings

The client or someone authorised to act on their behalf should submit and manage the building control application online.

You can read the guidance about preparing information for a building control approval application. It describes the information and documents you'll need to submit for your application.

Check how many applications you need: new higher-risk buildings

You can submit a single application for a:

- single tower project, which is any higher-risk building that is not connected to another building
- multiple tower project, this includes multiple higher-risk buildings connected to each other by a shared podium or common part, such as a car park, walkway or party wall

Staged applications

You can apply for a 'staged application'. This allows you to:

- progress the project in separate stages
- submit detailed plans for each stage prior to being able to start work on each stage

You can apply for a staged application for:

- single tower projects
- multiple tower projects

You can read more about new buildings constructed in stages in guidance. It tells you about:

- the staged application process
- complex buildings
- the definition of ‘commencement’
- the information you’ll need to submit

Before submitting a staged application for a multiple tower project, you should contact BSR for advice.

You must not start any building work until the building control application for that stage is approved.

BSR reviews staged applications on a case-by-case basis.

Applying to carry out building work on an existing higher-risk building

Before you apply, check that you need to submit an application. Do not submit a building control approval application for work that consists only of exempt work, competent person scheme work or emergency repairs.

How to apply: existing higher-risk buildings

The client or someone authorised to act on their behalf should submit and manage the building control application online.

You can read the guidance about preparing information for a building control approval application. It describes the information and documents you’ll need to submit for your application.

If you need help with your application, you can get advice from a competent contractor or other building control professional.

Check how many applications you need: existing higher-risk buildings

Submit one application per building. For example, submit one application if you're:

- a resident applying to carry out building work on your home which is in a registered high-rise residential building
- planning to carry out building work on multiple higher-risk buildings connected to each other by a shared podium, or common part
- planning to carry out various types of building work as part of one project, such as changing the internal layout of the building and altering its sprinkler system

Categories of building work: existing higher-risk buildings

Building work to an existing higher-risk building is classed as either category A or category B work.

If you apply for building control approval under the wrong category, BSRis likely to reject your application.

Category A work involves at least one of the following:

- changing the external height or width of the building
- changing the number of storeys
- changing the internal layout
- changing the number of residential units
- work that involves passive fire safety measures, such as fire-resistant materials
- work that involves active fire safety measures, such as sprinklers or alarms
- work that affects the number or width of staircases or other escape routes
- work on the building's common areas, including any work on the external wall which is applicable

Work is classed as category B work if it does not meet any of the criteria for category A work.

Emergency repairs to an existing higher-risk building

What counts as an emergency repair

Building work carried out to manage an urgent risk to the health, safety or welfare to people in or about the building, is known as an ‘emergency repair’.

Examples of when an emergency repair may be needed include when the urgent risk:

- cannot be avoided or managed by putting in place temporary management arrangements
- occurs during planned building work and it would not have been reasonable to expect, detect or avoid it
- occurs because of a breakdown in plant equipment or other equipment in the building

An emergency repair can be carried out promptly to address an urgent risk. However, any other building work needed to address the problem should be submitted in a building control approval application.

Emergency repairs should not be carried out to fix problems that have occurred due to a lack of foresight or planning by the client or a contractor.

If the repair work is not building work or is exempt then it can proceed without approval from BSR.

Fire and rescue service (FRS) enforcement notices

If you are an accountable person of a high-rise residential building the FRScan serve you with an enforcement notice under the Regulatory Reform (Fire Safety) Order 2005.

To comply with the notice you may need to carry out some building work. Work needed to comply with an enforcement notice is unlikely to be counted as emergency repairs as the work does not have to be undertaken immediately.

You may need to apply for building control approval for work needed to comply with the notice. If this is the case, contact the FRS who issued the notice about the impact of the timescales for assessing building control approval applications.

Telling BSR about an emergency repair

You do not need to apply for building control approval before carrying out an emergency repair. However, you must notify BSR about the emergency repair. You can do this by contacting BSR. Do this by the end of the first working day after the repair work starts.

When you notify BSR about an emergency repair you must:

- describe the repair work
- explain the urgency and why it was not practical to apply for building control approval before carrying out the repair work
- describe any measures put in place to reduce the urgent risks until the repair work is finished

As soon as the work starts you must send a copy of the emergency repair information to the responsible person under the Regulatory Reform (Fire Safety) Order 2005. You must also keep a copy of the emergency repair information as part of the information you must keep about a building.

BSR will assess the emergency repair information you provide. If BSR decides that the work:

- meets the criteria for an emergency repair, BSR will tell you what to do next
- does not meet the criteria for an emergency repair, then the work is unauthorised and BSR will decide if they need to take any action

After emergency repair work is completed

After the emergency repair work is completed you must apply for a regularisation certificate as soon as possible. You can do this by contacting BSR.

The charges for applying for a regularisation certificate are set out in the BSR charging scheme.

Additional reporting requirements for high-rise residential buildings

The principal accountable person (PAP) must update the building's safety case report to include the emergency repair work. If you are not the PAP, you must send a copy of the emergency repair notice to the PAP.

The relevant accountable person must submit a mandatory occurrence notice and report to BSR if both of the following apply:

- the repair work was carried out to manage risks relating to structural failure or the spread of fire in the building

- the repair work likely prevented the risk of death or serious injury to a significant number of people

After applying

Application validation

When BSR receives your application they will check to make sure the required information has been submitted. If any information is missing BSRmay:

- ask you to supply the missing information
- reject your application

An application that contains all the required information is deemed valid, and will progress to the assessment stage.

A validated application does not mean that the application has been approved.

Application assessment

Unless an extension is agreed, BSR will take up to:

- 12 weeks to assess applications for new higher-risk buildings
- 8 weeks to assess applications for existing higher-risk buildings

The time it takes BSR to assess your application will depend on the quality of the application and the complexity of the work.

You do not need to contact BSR while your application is being assessed. BSR will contact you if they need any further information.

You must not start any building work until the building control application is approved.

Application decisions

Approved

Building work can start as planned.

Approved with requirements

Building work can start as planned on the parts of the application approved by BSR.

You must not start building work on any parts of the application that are subject to a requirement, until BSR is satisfied the requirement has been met.

Examples of requirements include BSR telling you to:

- supply additional information, such as providing further plans or details to clarify certain aspects of the application
- supply revised plans to address changes and concerns raised by BSR
- delay certain aspects of building work until you can demonstrate specific requirements are met

Rejected

A building control approval application will be rejected if it shows that the work will not comply with building regulations. BSR will tell you why they have rejected your application.

Applications will be rejected if they do not:

- have enough detail to show compliance
- show effective strategies for managing compliance

You must not start building work if the application is rejected.

Request a review of an application decision

If you disagree with an application decision you can request a review. Details about how to request a review will be included in the decision letter.

If after the review you still disagree with the decision, you can appeal to a First-tier Tribunal.

Expiry of building control approval

If the building work has not reached a certain point within 3 years, you'll lose approval for the work. This point is known as 'commencement' and it's defined in section 46A Building Regulations 2010.

You'll need to give BSR an estimated commencement date when you apply for building control approval.

If you need help with the commencement date, check with a competent contractor or other building control professional.

Managing building work after approval

You must submit the following notices and notifications during the building project.

- a notice of intention to start work at least 5 working days before starting
- a notice of commencement within 5 working days of reaching this point
- notifications of building work reaching specified points in your inspection schedule

You can submit these notices and notifications by using the manage a building control approval application service.

Managing staged building work after approval

For staged building work, submit separate notices and notifications to BSR for each stage of work.

Making changes to the project after approval

If your building control application is approved, the documents you uploaded for the application are known as the ‘agreed documents’.

You must comply with the agreed documents throughout the build. Any change to an agreed document is known as a ‘controlled change’. You must:

- manage and assess each change in accordance with your change control plan
- record each change in your change control log

You must tell BSR about any:

- change of client, principal designer or principal contractor
- changes in contact details connected to the application, including the email address you use to access the online application
- ‘notifiable’ or ‘major’ changes to the project

If you want to make a major change, building work must stop on that part of the project until BSR gives building control approval for the change.

Read the guidance about making changes to a higher-risk building project. It tells you:

- what notifiable and major changes are
- about the change control process
- how to submit changes to BSR

Completion certificates

When building work is completed, you must apply for a completion certificate. If you submitted a partial completion strategy as part of your application, you must apply for partial completion certificates in accordance with the strategy.

BSR will issue you a completion certificate if they are satisfied the work meets all relevant building regulations.

Read the guidance about applying for a completion certificate it tells you:

- how to apply for a full or partial completion certificate
- the documents you'll need to submit to apply for a certificate

A higher-risk building with at least 2 residential units must be registered with BSR before people live there. You will need a completion certificate to register the building.

Charges

The charges for applying for building control approval are set out in the BSR charging scheme.